

In The Matter Of:
TARA WALSH vs.
STEPHEN RUSSELL

B E F O R E: HON. ARLENE GORDON-OLIVER
September 11, 2018

Aarons Court Reporting
175 Main Street, Suite 18, 7th Flr.
White Plains, NY 10601
914-506-1288

THE STATE OF NEW YORK
COUNTY OF WESTCHESTER: FAMILY COURT

-----X

TARA WALSH,

Petitioner,

vs.

FAMILY UNIT: 154703
DOCKET NOS.: 0-06917-18
0-06917-18/18A
0-06917-18/18B
V-07641-18

STEPHEN RUSSELL,

Respondent.

-----X

111 Martin Luther King Blvd,
White Plains, New York 10601

September 11, 2018

B E F O R E: HON. ARLENE GORDON-OLIVER

A P P E A R A N C E S:

LYDIA ANTONCIC, Attorney for Petitioner
JASON ADVOCATE, Attorney for Respondent
KATHERINE CHESTNUT, Attorney for Respondent
JENNIFER JACKMAN, Attorney for the Child
TARA WALSH, Petitioner
STEPHEN RUSSELL, Respondent

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NO WITNESSES OR EXHIBITS

PETITIONER

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Witness	Direct	Cross	Direct	Cross

RESPONDENT

			Re	Re
Witness	Direct	Cross	Direct	Cross

E X H I B I T S

PETITIONER

Exhibit No.	Description	ID	Evidence
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RESPONDENT

Exhibit No.	Description	ID	Evidence
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1 (2:44:05 P.M.)

2 THE COURT: All right, good afternoon, everyone.
3 I wanted an attorney's conference only because there are a
4 couple of issues that I need to go over.

5 Let me just deal with the first issue when I was
6 out of chambers last week. This stipulation that came into
7 me for the access for the father to be with the babysitter
8 --

9 MR. ADVOCATE: The visitation schedule.

10 THE COURT: The visitation. Where I ordered that
11 the visitation would be supervised by the grandfather of
12 the baby.

13 MS. JACKMAN: Yes, the maternal --

14 THE COURT: Okay.

15 MS. JACKMAN: -- grandfather that was supposed --

16 THE COURT: Right.

17 MS. JACKMAN: -- to have supervised.

18 THE COURT: What was the issue? Why was this
19 being brought (inaudible) like an emergency basis, but not
20 really an emergency because (inaudible) access? What was
21 going on?

22 What do I -- and it was just for this weekend, no
23 other weekend. Does somebody want to tell me?

24 MS. ANTONCIC: Well, the father lives in
25 California, Your Honor.

1 THE COURT: I know where he lives.

2 MS. ANTONCIC: And so he was going to be here,
3 you know, prior to the court appearance.

4 THE COURT: Okay.

5 MS. ANTONCIC: Tara's father is not always
6 available, so that's kind of how that came out. But beyond
7 that, I'll let Mr. Advocate or Ms. Chestnut --

8 MR. ADVOCATE: I'm going to let my partner,
9 Katherine Chestnut, handle this, Your Honor. I was out the
10 last couple of weeks, so I was totally out of the loop.

11 THE COURT: Oh, okay. So you and I were in the
12 same position?

13 MR. ADVOCATE: Thank you, Your Honor.

14 MS. CHESTNUT: Your Honor, my client came to New
15 York for, I think, about two weeks in mid-August, and it
16 became very clear at that point that the mother's father
17 was not willing to supervise his visits. He expressed
18 disdain for my client. I --

19 THE COURT: He expressed it to?

20 MS. CHESTNUT: To my client himself. Also, he
21 asked his -- the mother had her California attorney tell
22 him that her mother would supervise the visits instead of
23 the father. And when we contacted the mother, essentially
24 the father came by our office and said, "Don't contact my
25 wife. This is harassment. How dare you?"

1 And so, at that point, I believe all counsel
2 agreed that he shouldn't be supervising the visits anymore.
3 And since my client had brought his nanny with him from
4 California, we felt that she could possibly supervise that.

5 THE COURT: Okay, let me ask you a question. He
6 brings the nanny with him for what purpose? I couldn't --

7 MS. CHESTNUT: For the purpose of trying to
8 supervise the visits in hopes that we could get this going
9 because --

10 THE COURT: So he brings the nanny before --

11 MS. CHESTNUT: -- we haven't had --

12 THE COURT: -- he even knows whether or not --

13 MS. CHESTNUT: We had to have --

14 MS. ANTONCIC: That's our point, exactly, Your
15 Honor. He showed up here and expected everyone to drop
16 everything to --

17 THE COURT: That's how I feel --

18 (Simultaneous discussion)

19 THE COURT: -- to be honest with you.

20 MS. ANTONCIC: -- get this done and --

21 THE COURT: That it was really inappropriate the
22 way it was done.

23 MS. ANTONCIC: We -- and we -- you know, we
24 worked tirelessly to get it done because, despite
25 everything, my client believes that he should have access

1 to his daughter, but this is now the second time he's just
2 shown up and expected, you know, this emergency access to
3 be modified.

4 I just want to briefly address the allegation,
5 what Ms. Chestnut said about my client's father. What she
6 neglected to say is that Mr. Russell has sent Tara's father
7 several harassing texts, calling him -- I don't even want
8 to repeat the profanity, but it's in our papers. And he
9 also has sent, you know, threatening legal action and what
10 not.

11 And, quite frankly, he's had it. He's had it
12 with this inappropriate behavior, so we're not going to
13 dispute that it should be a mutual person. We've been
14 discussing it outside.

15 THE COURT: So that was my other issue.
16 Babysitter hired by your client?

17 MS. CHESTNUT: By both the parties, Your Honor.
18 (Simultaneous discussion)

19 THE COURT: What do you mean by both parties?

20 MS. CHESTNUT: It was a nanny that both parties
21 wanted at the time.

22 THE COURT: One second. She doesn't pay this
23 nanny. He pays the nanny.

24 MS. CHESTNUT: That's correct.

25 THE COURT: So it's an employee. That's not what

1 I envision when I do supervised visits. Mutual party.

2 MS. CHESTNUT: Your Honor, this is a nanny that
3 they both selected together and who was the full-time, 24-
4 hour --

5 (Simultaneous discussion)

6 THE COURT: Was is the operative word.

7 MS. CHESTNUT: -- for over three months.

8 THE COURT: Well, was is the operative word,
9 right? Isn't it?

10 MS. CHESTNUT: Yes.

11 THE COURT: Is it a current nanny?

12 MS. ANTONCIC: No.

13 MS. CHESTNUT: No, Your Honor. And my client
14 never hired Ms. Tahaya (ph). This was -- Mr. Walsh hired
15 her and Ms. Tahaya apparently has a non-disclosure
16 agreement that she signed with Mr. Walsh. So my client
17 obviously does not consent to that.

18 THE COURT: Wait one second. But Ms. Tahaya gave
19 me a statement that you consented to.

20 MS. CHESTNUT: Only because -- only for these
21 couple of dates so that he can see the baby. That was --

22 THE COURT: Where was he going to see the baby?

23 MS. CHESTNUT: We specifically (inaudible) --

24 THE COURT: One second. Where was he going to
25 see the baby?

1 MS. CHESTNUT: I believe -- Your Honor, I don't
2 have the stipulation in front of me, but I believe it was
3 in his hotel room.

4 THE COURT: Okay. So, counsel, if their clients
5 correct that the father is so out of control, why would you
6 have the client agree -- I just didn't understand why this
7 agreement was done.

8 MS. ANTONCIC: California counsel sent that
9 agreement over. And the reason why is because he was here
10 for a couple of days. Ms. Jackman had met with Ms. Tahaya
11 and said that she didn't have any concerns with Ms. Tahaya
12 caring for the child.

13 My client doesn't believe that Ms. Tahaya would
14 harm the child either. What she doesn't believe is that if
15 Mr. Russell does something inappropriate, that she will
16 disclose it. And that's why she's not comfortable.

17 THE COURT: Then why did you okay your client to
18 sign off on the stip?

19 MS. ANTONCIC: Because it was to cover a two-hour
20 visit. That's why. I mean, I'm sorry, it was more than
21 two hours.

22 MS. JACKMAN: Because it was for a very limited
23 purpose and I believe that the mother was quite clear on
24 the stipulation that she wasn't going to agree going
25 forward.

1 The bottom line, Judge, is that they had a very
2 specific order. Mr. Walsh, the maternal grandfather, was
3 supposed to supervise the visit. There's no dispute the
4 relationship broke down. He is not going to supervise the
5 visits anymore. So we --

6 THE COURT: And you know -- I'm so sorry to cut
7 you, Ms. Jackman. Somebody should've brought this to my
8 attention. Emergency access is always the way to go if
9 there is a breakdown and something needs to happen, but I
10 couldn't understand why it wasn't brought to me in an
11 emergency access request. And then, all these things were
12 being done.

13 MS. CHESTNUT: Your Honor, just to clarify, we
14 were trying to negotiate interim access prior to my client
15 coming here from California the first time in mid-August.

16 And when things kind of were moving slowly, I
17 said, you know, it could start tomorrow, so maybe you
18 should come out here so that when it starts, you're going
19 to be here and they're going to be able to do it. And at
20 that point, we had all, I believe, agreed on Ms.
21 (Inaudible) doing the supervision.

22 But then, we couldn't finalize that stip and he
23 ended up going back to California, and then came back again
24 last week. He's only had one visit, other than the single
25 visit he had back in July because of this situation.

1 We did our best to try to resolve this without,
2 you know, going forward with further motion practices.
3 There are -- is already an order to show cause and a cross
4 motion, both seeking emergency temporary physical custody
5 of the child. And so we were trying to get that and,
6 unfortunately, it only resulted in one visit. And it took
7 a long time and my client is here. His number one priority
8 is to see this child.

9 (Simultaneous discussion)

10 MS. ANTONCIC: His number one priority is to see
11 the child, Your Honor, but they had a visit scheduled for
12 Sunday, which he only used one hour-and-a-half of the three
13 hours. He also declined access yesterday when it was
14 offered to him.

15 THE COURT: Right. But if he's having a problem
16 with -- the relationship has broken down, I can understand
17 why.

18 But, you know, this is why you bring these things
19 to the attention of the Court so that I can figure out,
20 okay, how do we make sure that the parties are getting what
21 they need or desire without unilaterally taking it on their
22 selves and not alerting me to, "There was an issue, Judge,
23 why we are doing this change."

24 MS. ANTONCIC: Well, understood, Your Honor. I
25 do believe Ms. Chestnut did send a request for a telephone

1 conference.

2 THE COURT: Yeah, but that's not --

3 (Simultaneous discussion)

4 THE COURT: -- how we do emergencies in this
5 Court.

6 MS. ANTONCIC: I understand.

7 THE COURT: A telephone conference --

8 MS. ANTONCIC: I understand.

9 MR. ADVOCATE: How -- what is the procedure? You
10 would like (inaudible) to call?

11 MS. JACKMAN: File a motion.

12 THE COURT: No, no. Or you can just (inaudible)
13 an access request if you've got a problem and then we can
14 temporary -- you know, file it in the morning and get heard
15 the same day. And if I'm not here, any judge hears it.
16 But no telephone conferences.

17 I'm on the bench from 9:30 to 5:00, so there's no
18 way I'm going to be able to attend to it. And then, I'm
19 the type of judge, I want to see the parties and I want to
20 hear all the arguments. And a telephone conference really
21 doesn't allow me to get all that done. So -- and it brings
22 my day -- unless I have it scheduled in advance, there's no
23 way I can get off the bench with other cases pending to do
24 a telephone conference on such a complicated manner. So --

25 MR. ADVOCATE: Next time, we'll definitely do

1 that.

2 THE COURT: Do it, gladly. Even if it's just
3 handwritten. You don't have to type it all up.
4 (Inaudible) between the parties, and dad needs access, and
5 there's no communication between father and the
6 grandfather, and we need to have someone supervise.

7 I'll hear it that way, but it has to come before
8 me on the record. Because the other thing, Ms. Jackman,
9 you had an opportunity to meet with the proposed
10 babysitter?

11 MS. JACKMAN: I did, Your Honor, yes.

12 THE COURT: And let me tell you what my
13 reservations are with this babysitter. Babysitter is paid
14 for by dad.

15 MR. ADVOCATE: 100 percent. It's his employee.

16 THE COURT: No, that's not what I mean by
17 supervised visits.

18 MR. ADVOCATE: As -- it's not our idea of
19 supervised visitation either, Your Honor. But to be clear,
20 I want to just take a step back for a second.

21 THE COURT: Right.

22 MR. ADVOCATE: There's a motion that he needs
23 supervision.

24 THE COURT: Yes.

25 MR. ADVOCATE: That actually hasn't been

1 established anywhere.

2 What we actually have is a request on the
3 mother's side for supervised visitation. We have a request
4 on the father's side that the mother should be supervised,
5 and not by her parents. We've got a request on our side
6 that says, well, he doesn't need supervision at all.

7 But just to facilitate access now before this
8 Court eventually has its evidentiary hearing, we will agree
9 to state, we will make sure that the mother's concerns
10 regarding the father are alleviated because he's going to
11 have a full-time childcare provider available to help. I
12 don't agree that supervision is necessary. But if the
13 Court thinks it is, let's have a hearing on it (inaudible)
14 --

15 THE COURT: I don't know if that's the mother's
16 concern, that the father doesn't have the ability to take
17 care of the child. I think it's more than that.

18 MS. ANTONCIC: It's way more than that, Your
19 Honor.

20 THE COURT: Yes. So --

21 MS. ANTONCIC: He's had a serious erratic
22 behavior. There are allegations of --

23 THE COURT: That's what I'm hearing.

24 MS. ANTONCIC: -- drug use and hallucinations and
25 what I feel are very serious allegations on, you know -- as

1 to Mr. Russell's behavior.

2 And we -- you know, we submitted a declaration
3 from one of his -- one of the few security officers that
4 don't work for him anymore that outlined his bizarre
5 behavior right after the baby was born.

6 So my client just wants to make sure the baby is
7 safe. I actually suggested a court-appointed neutral to do
8 the --

9 (Simultaneous discussion)

10 MS. ANTONCIC: -- because then the Court has the
11 access to reports.

12 THE COURT: And I have someone to report back to
13 me about both parties. Now, the only reason why the
14 Petitioner in this case, Mr. Advocate, was allowed to even
15 have custody was because she's already (inaudible) with her
16 mother and father supervising to make sure that the baby
17 was safe and there were no issues.

18 And my -- and at that point, the mother and
19 father, your client even, had said, you know, he got along
20 with them great and he was okay with them supervising. I'm
21 not -- is my memory --

22 MS. ANTONCIC: Yes.

23 MR. ADVOCATE: (Inaudible). He said he had a
24 decent relationship with the father.

25 THE COURT: Yes. Right.

1 MR. ADVOCATE: He even had a great relationship
2 with mom.

3 THE COURT: (Inaudible) so that we all decided,
4 okay, great. So there is this person that your client
5 actually said a decent relationship and he was okay with
6 supervising, and if she was with the parents, her parents,
7 then it was okay, and he could go visit.

8 I mean, this was the way we all got to --

9 MR. ADVOCATE: But if we're doing (inaudible)
10 assessment, then I want an assessment on both sides. If
11 (inaudible) supervising present, I think the supervisory
12 should be present and reporting for the Court about what
13 they're seeing at mom's house --

14 THE COURT: Absolutely.

15 MR. ADVOCATE: -- and what they're seeing in
16 dad's house.

17 THE COURT: Absolutely.

18 MS. ANTONCIC: My client has no objection to
19 that, Your Honor.

20 THE COURT: Absolutely. I totally agree with you
21 100 percent on that. So that's what we're going to need to
22 do.

23 MR. ADVOCATE: Let's -- there are a few of these
24 agencies up in the county that do supervised visitation
25 like that, Your Honor. Is there one that you particularly

1 prefer?

2 THE COURT: The agencies work a little bit slowly
3 in terms of getting on board. I'm thinking about one of
4 the individual supervisors. We've got --

5 MR. ADVOCATE: Jennifer, do you have any
6 suggestions?

7 MS. JACKMAN: No. I think we're looking
8 (inaudible) now because --

9 THE COURT: Delia Farquharson?

10 MS. JACKMAN: Yes.

11 THE COURT: I would highly suggest Delia
12 Farquharson.

13 MS. JACKMAN: Yeah.

14 MS. ANTONCIC: I'm sorry, what is the name?
15 Delia --

16 MS. JACKMAN: Farquharson.

17 MS. ANTONCIC: Parkinson?

18 MS. JACKMAN: Yeah, I can give you her contact
19 information. I have it in my office.

20 THE COURT: Delia Farquharson. Now, Mr.
21 Advocate, one of the issues that I have is that, you know,
22 Ms. Farquharson can observe for periods of time how mom
23 interacts with the child, but mom's going to still be with
24 her parents.

25 MR. ADVOCATE: Yeah, I understand.

1 THE COURT: Okay?

2 MR. ADVOCATE: So I'm happy we have that --

3 THE COURT: So that's (inaudible) --

4 MR. ADVOCATE: -- (inaudible) observe the whole
5 family dynamics, which it doesn't need to be, obviously,
6 twenty-four seven. I think for a period of time --

7 THE COURT: That's fine.

8 MR. ADVOCATE: -- (inaudible) both sides of the
9 table and then we can move beyond that.

10 THE COURT: Let's see if --

11 (Low discussion)

12 MS. JACKMAN: (Inaudible) it was one --

13 THE COURT: Okay. I have Ms. Farquharson's --

14 (Low discussion)

15 MS. ANTONCIC: Would you spell it? Is it F-A-R-
16 K-I-S-O-N?

17 MS. CHESTNUT: Q. Q.

18 THE COURT: Q. F-A-R-Q.

19 MS. ANTONCIC: F-A-R-Q?

20 (Low discussion)

21 MS. ANTONCIC: Maybe we should, Judge, prepare
22 two in case she's not available?

23 THE COURT: Who else would you suggest, Ms.
24 Jackman?

25 MS. JACKMAN: I don't know of any individuals

1 except for SVE at this point. They do go (inaudible).

2 THE COURT: Yeah, but SVE is --

3 (Low discussion)

4 THE COURT: Okay. So we're going to make a call
5 to see if she's available. All right.

6 MR. ADVOCATE: Judge, (inaudible) just one
7 (inaudible) I just want to make the Court aware. I just
8 want to maybe close this a little bit.

9 Right now, the Petitioner, Tara Walsh, she's
10 staying with her parents. She's, of course, (inaudible).
11 But there's no order that requires her to do so. We'd be
12 concerned a little bit if she were to leave without the
13 parents' supervision, that she -- some order that says that
14 she can't relocate from the parents without Court authority
15 or --

16 THE COURT: Okay. So let me ask (inaudible) mom,
17 do you have a problem with the order? Is that -- I don't
18 see where it's --

19 MS. ANTONCIC: I mean, I would have to run that
20 by my client, but I don't believe that she would have an
21 issue with that, but I don't want to say that without
22 speaking to her.

23 THE COURT: Okay. So you run that by her and you
24 tell her that the Judge thinks it's a good idea, just to
25 make sure that there's status quo.

1 MS. JACKMAN: I've actually spoken to them about
2 that. They're a family. They're working together. I just
3 saw them recently at their home and I'm satisfied with the
4 baby, who is wonderfully happy and beautiful, growing very,
5 very well, is safe --

6 THE COURT: Okay.

7 MS. JACKMAN: -- at the house with the
8 grandparents and the mother.

9 THE COURT: All right. Okay. So (inaudible) you
10 might want to tell your client if she has any reservation
11 whatsoever the Court and the AFC thinks it's a good idea.

12 MS. ANTONCIC: Okay, sure. Okay.

13 THE COURT: Okay. So where -- we need to see if
14 Ms. Farquharson can get right on this. Let me ask a
15 question: Is dad still going to be here?

16 MR. ADVOCATE: Yes, Your Honor. He's in house --

17 THE COURT: Okay.

18 MR. ADVOCATE: Right now, he's in, I think, a
19 hotel or something, but he is looking at a couple of houses
20 in the area. One is --

21 THE COURT: Okay, good.

22 MR. ADVOCATE: -- in Chappaqua and another one is
23 in (Inaudible).

24 THE COURT: Okay.

25 MR. ADVOCATE: So very close by.

1 THE COURT: Okay.

2 MR. ADVOCATE: He's going to make himself
3 available until such time as we sort out the custody
4 situation here.

5 THE COURT: Okay, perfect. Okay. Because I do
6 want him to be able to have a relationship with the
7 daughter.

8 MR. ADVOCATE: (Inaudible) work out some
9 visitation schedule and everything else today.

10 THE COURT: Okay, fine. So that I'm going to
11 leave the parties to do with -- and I guess we're going to
12 need Ms. Farquharson for that also?

13 MS. JACKMAN: Yes.

14 THE COURT: And I'm not --

15 (Low discussion)

16 MS. CHESTNUT: Jason?

17 MR. ADVOCATE: Yes?

18 (Low discussion)

19 THE COURT: And I'm not opposed to the babysitter
20 being available, but that just can't be the supervisor
21 because she's an employee.

22 (Low discussion)

23 THE COURT: (Inaudible) quickly.

24 (Low discussion)

25 THE COURT: Oh, good. Okay. So Ms. Farquharson

1 is available and she can (inaudible) about it (inaudible).

2 (Simultaneous discussion)

3 THE COURT: Mr. Advocate? Ms. Farquharson is
4 available and she's ready to turn her attention towards it.
5 We have someone.

6 MR. ADVOCATE: Oh, that's terrific, Your Honor.

7 (Simultaneous discussion)

8 THE COURT: All right.

9 MR. ADVOCATE: That's great.

10 THE COURT: See, this is how I work. You come to
11 court and tell me what you need, and I get right on it.

12 MR. ADVOCATE: Okay. So --

13 THE COURT: Okay. So --

14 MR. ADVOCATE: -- the next issue becomes sort of
15 a --

16 THE COURT: Hold on one second. My next issue is
17 jurisdiction. I'm sure you've all gotten the order from
18 the California court and the transcript?

19 MS. ANTONCIC: No, Your Honor --

20 (Simultaneous discussion)

21 MS. ANTONCIC: -- because I was going to ask for
22 it. You have it?

23 MR. ADVOCATE: I --

24 MS. JACKMAN: I have not.

25 MR. ADVOCATE: I don't have the order, but I did

1 (inaudible) the transcript last night.

2 MS. ANTONCIC: Well, I didn't get the transcript
3 yet. I know --

4 (Simultaneous discussion)

5 MS. ANTONCIC: I did receive the draft order, but
6 not the transcript.

7 THE COURT: I hope you both were in touch with
8 your counterparts in California.

9 MR. ADVOCATE: And we just -- I just got it from
10 the California lawyer yesterday, last night.

11 THE COURT: Oh, so you have it now?

12 MR. ADVOCATE: I have it and I can give it to --

13 MS. ANTONCIC: Yeah. I just spoke to Ms. Corson
14 (ph) and she didn't say anything about it, so I'm assuming
15 she didn't get it. I mean, I don't know if your --

16 (Simultaneous discussion)

17 MS. ANTONCIC: -- counterpart got it yesterday.

18 MR. ADVOCATE: I can summarize it very briefly.
19 This Court is going to handle jurisdictional aspect of the
20 case. The California Court is not handling anything other
21 than the old (inaudible) --

22 THE COURT: Okay.

23 MR. ADVOCATE: -- (inaudible).

24 MS. ANTONCIC: (Inaudible) go forward.

25 THE COURT: Okay. All right. So now, the

1 question that I have for the both of you is: Is anyone
2 objecting to this Court having jurisdiction? If you do
3 object, then I'll set it down for an evidentiary hearing,
4 but do you really want to spend time doing that?

5 MR. ADVOCATE: Let me just speak to my client
6 about that briefly, Your Honor. I haven't had a chance to
7 discuss it.

8 THE COURT: And then -- yes. And then --

9 MR. ADVOCATE: We will have a quick discussion.

10 THE COURT: All right. Let him go through this
11 transcript also because you'll get an idea as far as of the
12 (inaudible) here, so --

13 MR. ADVOCATE: I got that feeling, so
14 (inaudible) --

15 THE COURT: Okay.

16 MR. ADVOCATE: So I'll explain that to him.

17 THE COURT: All right, great. Okay. So, Mr.
18 Advocate, I cut you off. You were going to say there's
19 another issue?

20 MR. ADVOCATE: No, it's just, logistically, from
21 now and for the next, you know, few weeks until -- I don't
22 know what the next step is in the case. I would assume
23 we're moving towards something else, but, in the time
24 being, we have to go with the -- what a visitation schedule
25 (inaudible) --

1 THE COURT: Right. So that's where the parties
2 are now going to go out. You're going to (inaudible) with
3 the assistance of Ms. Jackman. Now, you also might need
4 Ms. Farquharson there.

5 MS. JACKMAN: You do. You're going to need her
6 there regardless.

7 THE COURT: As far as her availability.

8 MS. JACKMAN: Yeah.

9 THE COURT: So --

10 MS. JACKMAN: So I think --

11 (Simultaneous discussion)

12 MS. JACKMAN: -- the order (inaudible).

13 THE COURT: -- telephone number.

14 (Simultaneous discussion)

15 THE COURT: And that way, you get Ms. Farquharson
16 on the phone --

17 (Simultaneous discussion)

18 THE COURT: -- Ms. Jackman.

19 MR. ADVOCATE: Yes.

20 (Low discussion)

21 MS. JACKMAN: I see. Okay.

22 MR. ADVOCATE: What --

23 MS. JACKMAN: No, we're just logistically
24 thinking about what order we could craft today, Your Honor,
25 just saying that there would be supervised visitation, as

1 with Ms. Farquharson.

2 THE COURT: I tell you what. We're going to give
3 you her number. See if you can raise her on the phone.

4 (Low discussion)

5 THE COURT: See if you can raise her on the
6 phone. Go out to the (inaudible) and try to just bring
7 done some timeframes because I know she's pretty busy, so I
8 want to make sure that you get an opportunity, especially
9 your client, to tell her what your preferences, as far as
10 visits, that she can possibly carve into her schedule.

11 MR. ADVOCATE: Because a major issue for us,
12 really, is the next step in the case is really -- and the
13 focus for the case is really over the custody issue, right?

14 THE COURT: I understand.

15 MR. ADVOCATE: We -- I think everybody in this
16 room knows that's the big issue. You know, obviously, both
17 sides feel it's an emergency situation, so we need to
18 figure out what the timing is.

19 If we're looking at a trial in the case three
20 months from now, I don't want to have supervision in place
21 that limits him for, you know, two or three hours several
22 times a week that goes months. And I'm willing to do it
23 for a short period of time so as to report back to the
24 Court (inaudible) about the parenting abilities and to have
25 some comfort that he's a --

1 THE COURT: Okay.

2 MR. ADVOCATE: -- you know, that he can watch the
3 child without court-ordered supervision.

4 THE COURT: Okay.

5 MR. ADVOCATE: Yeah.

6 THE COURT: Okay. Ms. Jackman had already raised
7 this issue and I think it's a great issue. Forensics. So
8 that's where we're going next.

9 MS. ANTONCIC: And while on the forensics, Your
10 Honor, we will also like to request -- and my client has
11 said herself that she will agree to this, to drug and
12 substance abuse testing, as well, going forward. And I
13 think that if we can agree to jurisdiction, we can get that
14 started and move this along (inaudible).

15 And to address Mr. Advocate's concern, my client
16 would have, you know, no objection to, you know, increasing
17 the amount of access, depending on the reports to the
18 Court. This is a very young child. They had an hour-and-
19 a-half visit and she was upset by the end of it, which is
20 understandable.

21 She doesn't really know him, so, you know,
22 frequent, short visits would probably be a good idea.

23 MR. ADVOCATE: Your Honor --

24 THE COURT: I'm going to leave it to the AFC, Ms.
25 Jackman, who is very skilled at trying to figure out what

1 babies need, want, children in general, okay, Mr. Advocate,
2 so you don't need to respond.

3 MR. ADVOCATE: I just want to say one thing and
4 it really (inaudible).

5 THE COURT: Yes, yes, yes.

6 MR. ADVOCATE: It's not that he doesn't know this
7 child. I think that's an absolutely absurd position. The
8 child was with him since the child was born until the day
9 she came back from California months later here.

10 And in that period of time, yes, the child hasn't
11 seen him because she violated the agreement --

12 THE COURT: One second.

13 MR. ADVOCATE: -- she made with him.

14 THE COURT: Mr. Advocate, I hear you, but, you
15 know what, I spoke with -- I told you not to bother to
16 respond because I was going to disregard that.

17 MR. ADVOCATE: Okay. Your Honor, if you're
18 disregarding that, I'll --

19 THE COURT: I'm disregarding it because children,
20 you know, babies especially, they bond with the person that
21 they're most with.

22 MS. JACKMAN: Exactly.

23 THE COURT: So she hasn't seen her dad in a
24 while, it's going to be strange. This is why I'm
25 disregarding that and I'm saying that Ms. Jackman will put

1 together a schedule, along with Ms. Farquharson, that will
2 work to make sure that the bonding happens with dad also.

3 MR. ADVOCATE: And I'd like if we come --

4 (Simultaneous discussion)

5 MR. ADVOCATE: I'd like to be able to come back
6 to court after a few weeks of that and, say, if we have a
7 good report and then see if unsupervised --

8 THE COURT: Well, we'll see what happens because
9 I'm going to need to do forensics (inaudible).

10 (Low discussion)

11 MR. ADVOCATE: Well, I don't think you're --

12 (Low discussion)

13 THE COURT: I'm sorry? Give me one second.

14 MR. ADVOCATE: Yes.

15 (Simultaneous discussion)

16 THE COURT: Oh, emergency?

17 COURT OFFICER: Yeah.

18 MS. ANTONCIC: Uh-oh, emergency?

19 THE COURT: So --

20 MR. ADVOCATE: I just want to say --

21 THE COURT: Well, you're going to get a chance to
22 come back.

23 MR. ADVOCATE: Okay.

24 (Simultaneous discussion)

25 MR. ADVOCATE: We'll talk about it in a few

1 minutes. I'll wait for the emergency to --

2 THE COURT: Right. Right. So this will get a
3 second call.

4 MR. ADVOCATE: -- (inaudible).

5 THE COURT: You're going to try to --

6 MS. JACKMAN: I'll call -- yes.

7 THE COURT: -- get Ms. Farquharson and --

8 MS. JACKMAN: Right now (inaudible) --

9 (Simultaneous discussion)

10 THE COURT: -- work on --

11 MS. JACKMAN: Judge, before we go, without the
12 parties here, I did speak to counselors about private
13 paying this case.

14 THE COURT: Yes.

15 MS. JACKMAN: I was appointed by the State, but
16 both parties have private counsel --

17 THE COURT: Yes.

18 MS. JACKMAN: -- and I believe that Mr. Russell
19 is of significant means, so I'm hoping I don't have to make
20 a motion (inaudible) --

21 (Simultaneous discussion)

22 MR. ADVOCATE: (Inaudible) the only question I
23 have is, Your Honor, I'd like to (inaudible) small
24 (inaudible) number. I don't want that number to be five or
25 ten percent of the AFC, so she's got some (inaudible),

1 because I do believe she made some significant money last
2 year. I'd like to find that out.

3 So if that's the case, then she should have some
4 little stake in the AFC's bills. It's something to --

5 (Simultaneous discussion)

6 THE COURT: Let me think about what we want to do
7 here, but --

8 MS. ANTONCIC: My client also has a fee
9 application, Your Honor.

10 THE COURT: Okay.

11 MS. ANTONCIC: Mr. Russell is a multi-millionaire
12 and --

13 THE COURT: Let's -- I know. And I know Judge
14 Chang already awarded your client counsel fees.

15 MS. ANTONCIC: In California.

16 MR. ADVOCATE: Yes.

17 THE COURT: In California, so Mr. --

18 (OFF THE RECORD)

19 (TIME NOTED 3:08:00 P.M.)

20 (ON THE RECORD)

21 (TIME NOTED 4:30:02 P.M.)

22 COURT OFFICER: (Inaudible). Okay, good
23 afternoon. This is cases 30 through 34 on today's calendar
24 (inaudible) matters of Walsh and Russell.

25 Counsel, your appearance for the record, first,

1 please?

2 MS. ANTONCIC: Lydia Antoncic, 8 Madison Avenue,
3 Second Floor, Valhalla, New York 10595, for the Petitioner,
4 Tara Walsh.

5 Good afternoon, Your Honor.

6 THE COURT: Okay, good afternoon.

7 MR. ADVOCATE: Jason Advocate and Katherine
8 Chestnut, for the Respondent, Advocate, LLP, New York, New
9 York 10036, for Stephen Russell, who is here to my left
10 today.

11 THE COURT: Okay, thank you.

12 MS. JACKMAN: Good afternoon, Your Honor.
13 Jennifer Jackman, attorney for the child.

14 THE COURT: Thank you.

15 COURT OFFICER: All other parties, please raise
16 your right hands. Do you swear or affirm (inaudible) you
17 give in court today will be true and accurate to the best
18 of your knowledge? Ma'am?

19 T A R A W A L S H, a witness herein, was
20 examined and testified as follows:

21 MS. WALSH: Yes, I do.

22 COURT OFFICER: And, sir?

23 S T E P H E N R U S S E L L, a witness herein,
24 was examined and testified as follows:

25 MR. RUSSELL: Yes, I do.

1 THE COURT: All right. Ma'am, your name and
2 address for the record unless your address is confidential?

3 MS. WALSH: Tara Walsh, 394 Whippoorwill Road,
4 Chappaqua, New York 10514.

5 COURT OFFICER: Thank you. And, sir?

6 MR. RUSSELL: Stephen Russell, 301 Mission
7 Street, 55D, San Francisco, California 94105.

8 COURT OFFICER: All right, thank you. Ma'am,
9 (inaudible)?

10 MS. WALSH: No.

11 COURT OFFICER: (Inaudible)? All right. Thank
12 you. Everybody can be seated at this time.

13 THE COURT: Okay, thank you. The parties are now
14 before me. You were working on the schedule.

15 And did you get a chance to speak with Ms.
16 Farquharson?

17 MS. JACKMAN: We did, Your Honor, and she was
18 available to do two or three --

19 THE COURT: Okay, great.

20 MS. JACKMAN: -- visits per week. She could also
21 do maybe an alternate Saturday. She was driving, did not
22 have her schedule in front of her, so couldn't tell me
23 exactly when she could start.

24 She did indicate, however, Your Honor, that we
25 just needed to give her an order --

1 THE COURT: Yes.

2 MS. JACKMAN: -- and give the parties her contact
3 information --

4 THE COURT: That's fine.

5 MS. JACKMAN: -- and she would be able to get
6 started immediately.

7 THE COURT: Okay, great. Perfect. Okay, Mr.
8 Advocate?

9 MR. ADVOCATE: (Inaudible) managed to resolve
10 that. We'd like, obviously, to do as many visits as
11 possible, whatever she can do.

12 THE COURT: That's fine.

13 (Simultaneous discussion)

14 MR. ADVOCATE: And, of course, as we discussed,
15 Your Honor, maybe a couple times a week, go over to the
16 mother's house for some observations there as well. We'll
17 have to work out her schedule to see her availability.

18 THE COURT: That's fine. Ms. Farquharson will
19 work with you. Okay.

20 MS. ANTONCIC: We have no objection to that, Your
21 Honor.

22 THE COURT: Okay, great. All right.

23 MR. ADVOCATE: (Inaudible) a little bit further.

24 THE COURT: Oh, really? (Inaudible) of seconds?

25 MS. ANTONCIC: Significant headway, Your Honor.

1 MR. ADVOCATE: We were able to narrow down the
2 issues (inaudible) before (inaudible) --

3 THE COURT: All right.

4 MR. ADVOCATE: -- the child. The parties have
5 agreed to drop their mutual orders of protection.

6 THE COURT: That was my question, the California
7 matter. It was on for August 29th. What happened with it?

8 MS. ANTONCIC: So they scheduled to continue, I
9 believe, in two weeks. So -- the 15th or the 19th? 19th.

10 MR. ADVOCATE: So the parties were going to -- my
11 client will drop that order of protection case in
12 California and any related actions associated with that.
13 The Petitioner, as well, to drop her temporary orders of
14 protection in New York, as well as the violation that goes
15 along with that.

16 My client will contact -- I believe it was a
17 former criminal case that (inaudible). There were charges
18 that were filed in connection with the (inaudible). He
19 will contact the police and say that he does not wish to
20 press those charges forward, so he will do that
21 expeditiously.

22 We may need to follow this up with a written
23 stipulation. And I've been told by (inaudible) that that
24 may be required by the California courts out there. We
25 will provide whatever is required to drop the order of

1 protection out there.

2 THE COURT: Okay.

3 MS. ANTONCIC: And, Your Honor, that is correct.
4 I also -- I believe that the charge of -- the criminal
5 charges have been dismissed, but I still, you know, want
6 that assurances as part of the stipulation. So we'll
7 follow up with that.

8 And it's without prejudice to remove it because I
9 think we agreed to the parties refraining from
10 communication with each other, except as to the child.

11 MR. ADVOCATE: Yeah, the parties are going to
12 agree to not communicate except with respect to the
13 children's issues -- or the child's issues, ad perhaps, in
14 the future, with any scheduling issues.

15 THE COURT: Well, that's part of the child's --

16 MR. ADVOCATE: Yes, it really is.

17 THE COURT: Okay. All right. Okay. So that
18 will take care of whatever matters are pending in
19 California because (inaudible) --

20 MR. ADVOCATE: Yes.

21 THE COURT: -- well, the custody. And you talked
22 about the orders of protection, but there are other matters
23 that were pending in California. I know Judge Chang has
24 put those other matters, custody --

25 MR. ADVOCATE: And that case will be --

1 jurisdiction was (inaudible), you know, base, Your Honor.

2 THE COURT: Okay.

3 MR. ADVOCATE: Your Honor, (inaudible) we want to
4 proceed with the jurisdictional hearing, especially in
5 light of the communications that went on between the two
6 courts. And I've spoken to my client (inaudible) about
7 that.

8 And while my client is willing to drop the
9 jurisdictional issue and let this Court address the
10 custody, he would like a more formal visitation arrangement
11 right now.

12 THE COURT: I'm not following you. I thought we
13 worked out a visitation schedule. What is it --

14 MR. ADVOCATE: Well, we have one with Ms. --

15 THE COURT: Supervised visits.

16 MR. ADVOCATE: -- Delia Farquharson, which is
17 some supervision. But in order to drop the jurisdictional
18 hearing completely, what he wants is -- this is what he
19 wants me to propose to Your Honor.

20 Because right now, the way the situation is, the
21 Petitioner has -- her parents are in Chappaqua, and she's
22 got the child out there primarily.

23 THE COURT: All right.

24 MR. ADVOCATE: He is willing to -- and I want to
25 agree with him on this, Your Honor. He wants his mother to

1 come from California, and they will then rent a place in
2 Chappaqua or right -- just very close to where Ms. Walsh's
3 parents are, so it's not a very far distance to drive, have
4 her -- his mother there, and his nanny there as well, and
5 maybe, you know, go do something where he gets more time,
6 overnights and access. That's what he wanted your input
7 on.

8 I've had some discussions with him about whether
9 that's feasible. He says it's totally feasible. He can do
10 that tomorrow. He's got several houses that are available
11 to him. His mother is available to come as well and the
12 nanny is already here.

13 So he has a household that he can have in place
14 that we thought would give the Judge some assurance that
15 the child is well cared for, because he's got his mother,
16 his nanny, and he can maybe have some overnights and not
17 just have small little events with Ms. Farquharson.

18 So I wanted to know your input on that, Your
19 Honor.

20 MS. JACKMAN: Your Honor, I don't -- as
21 (inaudible), there are some serious safety concern issues
22 here and I think that it would jeopardize the child's
23 safety to do anything more than this at this point, without
24 a report to the Court.

25 THE COURT: All right, fine. I just wanted to

1 see if this was something that you had discussed and you
2 were in agreement with because that's --

3 MS. JACKMAN: No.

4 MR. ADVOCATE: They're not in agreement. I have
5 discussed it. We're not in agreement.

6 THE COURT: Okay. So, Mr. Advocate, it's not
7 (inaudible). We can always have an evidentiary hearing
8 here on the matter of jurisdiction, so it's really not a
9 deal for me that, you know, your client is willing to drop
10 the jurisdictional issue if I (inaudible).

11 So we'll keep that on and we'll schedule --

12 MR. ADVOCATE: Your Honor, one other thing. I
13 think my client is willing to still drop the jurisdictional
14 issue.

15 However, at the end of -- give us a period
16 (inaudible). I was thinking three weeks. You should have
17 some significant reports from Ms. Farquharson by then. And
18 at that time, if the reports come out to the Court, and
19 they're favorable, I'd like to readdress with this Court at
20 that time giving my client unsupervised access to the
21 child.

22 Because what we have right now is a situation
23 where there are really, to a large extent, uncorroborated
24 allegations made by the wife that says the father needs
25 supervision. If we get the supervised visitation in place

1 and they come back positive for him, there really is no
2 need for supervision at that point. At that point, I'd
3 like to ask the Court, based on the reports, if you would
4 do away with the supervision, assuming we could (inaudible)
5 a long-term solution.

6 In this situation, (inaudible) as well as
7 (inaudible) the forensic group. That's going to take
8 months for us to get realized and going to do a trial at
9 the end of the forensic. That's quite a ways away and he
10 should not have to be under the orders of supervision when
11 there has been no evidentiary basis established in Court.
12 All we have is unsubstantiated claims by the mother, but we
13 haven't had a trial on the issue.

14 And I think also, if we have good reports, it
15 would give the Court the assurance it needs that he doesn't
16 need supervised visitation at that point.

17 THE COURT: If we have good reports. It's too
18 premature at this time --

19 (Simultaneous discussion)

20 THE COURT: -- we don't even have -- and maybe
21 that's why I -- thank you, Ms. Jackman, I'll let you finish
22 because that's where I was going with that.

23 MS. JACKMAN: Yeah, I was just going to say,
24 Judge, this is exactly why we called Ms. Farquharson. We
25 have a schedule that we were able to get going immediately.

1 If it comes back, you're certainly free to make any
2 application. But at this juncture, it's just too soon.

3 THE COURT: Okay.

4 MR. ADVOCATE: And I agree with that. I agree
5 with, at this juncture, it's too soon.

6 THE COURT: Yeah, but I'm not going to make any
7 promises or (inaudible) actually move his mother up here,
8 thinking that three weeks from now I'm going to do this.
9 We're going to meet back and I need to figure out when we
10 come back on my court schedule.

11 And the other thing that I wanted, before I did
12 anything else, is forensics because, again, Mr. Advocate,
13 the Petitioner is at a little bit of a disadvantage. She
14 doesn't have the (inaudible) the money or the means to move
15 the jurisdiction with the child and I don't think she wants
16 to.

17 My major concern that I've had in this
18 (inaudible) issue is, your client is (inaudible)
19 jurisdiction of the child.

20 MR. ADVOCATE: Your Honor, that's true. We would
21 agree to an order that says he can't move the jurisdiction.

22 THE COURT: No, I -- what (inaudible) I don't
23 need to order it right now. We can't (inaudible)
24 jurisdiction.

25 MR. ADVOCATE: No, of course he can't and he's

1 not going to. Your Honor, if it's a concern of the Courts,
2 I'll assure you that he will not do that and I'll consent
3 to an order that says he can't do it.

4 He is not going to be raising the jurisdiction
5 (inaudible). It's not -- that shouldn't even be a concern,
6 of course, because he can't do it. And if he does do it,
7 this Court would have every right to come down very hard on
8 him, and he would be in a very bad place with this Court.

9 THE COURT: (Inaudible) he's already (inaudible)
10 jurisdiction. The other issue is, overnight visits, not so
11 keen on that. How old is this baby?

12 MS. ANTONCIC: Seven months.

13 MS. JACKMAN: Seven months.

14 THE COURT: I don't want to (inaudible)
15 overnights at this point. Thank you (inaudible).

16 (Simultaneous discussion)

17 MR. ADVOCATE: The only person who has ever
18 inquired of anything is the Petitioner.

19 THE COURT: Okay, wait. Where are you going with
20 this?

21 MR. ADVOCATE: There's no reason to --

22 THE COURT: There is. No, no, no. I'm just
23 saying, I don't do overnights for such a young baby. It's
24 not because of this dad before me. It's just -- just no.

25 MR. ADVOCATE: What do you mean? No overnights

1 with the child?

2 THE COURT: Not at this point.

3 MR. ADVOCATE: Why, Your Honor?

4 THE COURT: Let's go through -- let me get some
5 forensics done. Let me see what happens here. I am not
6 going to put on this record that I am preparing to do
7 overnights. The baby is only seven months.

8 MR. ADVOCATE: Well, I know, but, Your Honor,
9 before the baby was seven months, the baby was living in
10 California --

11 THE COURT: With both parents.

12 MR. ADVOCATE: Yes, with both parents, for --

13 THE COURT: Right.

14 MR. ADVOCATE: -- four months.

15 THE COURT: Right.

16 (Simultaneous discussion)

17 MS. JACKMAN: Four months?

18 MS. ANTONCIC: Three months.

19 MR. ADVOCATE: Almost four months.

20 THE COURT: I'm only saying, "Right," because I'm
21 listening and I'm saying, "Okay. All right. I heard you,"
22 but no --

23 MR. ADVOCATE: Well, three-and-a-half or --

24 THE COURT: Well, whichever way --

25 (Simultaneous discussion)

1 MR. ADVOCATE: Three-and-a-half months.

2 THE COURT: Okay. Okay.

3 MR. ADVOCATE: They were living together as a
4 family. And my client was the one who was caring for the
5 child at night most of the time.

6 THE COURT: I don't know that.

7 MR. ADVOCATE: So -- well, I -- I'm telling you
8 that, Your Honor.

9 (Simultaneous discussion)

10 THE COURT: No, we weren't there.

11 MR. ADVOCATE: No, we weren't, but it goes on the
12 motion papers. We've seen the affidavit (inaudible) about
13 that.

14 THE COURT: Okay.

15 MR. ADVOCATE: And all I would do is have the
16 Court's (inaudible) as her affidavit.

17 THE COURT: One second.

18 MR. ADVOCATE: And then --

19 THE COURT: One second.

20 MR. ADVOCATE: Am I mistaken?

21 THE COURT: We're here. We're in New York. Mom
22 has had the child in New York (inaudible). The AFC said
23 the child is fine and safe.

24 Listen to me, Mr. Advocate.

25 MR. ADVOCATE: Okay.

1 THE COURT: I don't do overnights with such a
2 young child, and especially when I have these kinds of
3 issues. So just take that off and (inaudible). Dad can
4 even get an entire day's visit. I just don't do
5 overnights.

6 But we're not there yet. Please, let me take
7 this one step at a time. We're going to set the conference
8 for you to come back. You're going to have you visits. So
9 (inaudible) Ms. Farquharson as many as you want, sir, as
10 long as Ms. Farquharson can do it.

11 Ms. Farquharson is also going to be at their
12 residence and she's going to observe. And then, we're
13 going to set -- we're going to do forensics, also. We're
14 going to get that going.

15 MS. JACKMAN: And then, Your Honor, I think we
16 also agreed to do drug and substance abuse --

17 THE COURT: Yes. And --

18 MS. JACKMAN: -- testing of both --

19 THE COURT: -- I have the order (inaudible) --

20 MR. ADVOCATE: We do -- we consented to that,
21 Your Honor, (inaudible) --

22 MS. JACKMAN: Yeah.

23 THE COURT: (Inaudible) on today.

24 MS. JACKMAN: Yes, that's fine.

25 MR. ADVOCATE: (Inaudible) four or five?

1 THE COURT: You're going to go (inaudible).

2 MR. ADVOCATE: Okay.

3 THE COURT: So (inaudible), yes.

4 MR. ADVOCATE: Thank you. (Inaudible). Thank
5 you. And, Your Honor, when you (inaudible) the order, if
6 you can just not forget to (inaudible) she can't relocate.
7 The Petitioner can't relocate from the mother's residence
8 for the time being.

9 MS. ANTONCIC: I think we can do that order, yes.

10 MR. ADVOCATE: No, I thought the Court was going
11 to do it.

12 THE COURT: You're going to do it.

13 MS. JACKMAN: Unless (inaudible) notice, Your
14 Honor.

15 THE COURT: I thought I was going to plan on
16 something today.

17 MS. JACKMAN: Oh, that's fine. That's fine
18 (inaudible) --

19 (Simultaneous discussion)

20 THE COURT: Do you have it?

21 (Simultaneous discussion)

22 MS. JACKMAN: That's fine. That's fine.

23 THE COURT: Just do an order, please. October
24 28th --

25 (Simultaneous discussion)

1 THE COURT: -- at 11:00 a.m.?

2 MS. JACKMAN: I'm actually out of --

3 MR. ADVOCATE: I'm sorry, what was it?

4 MS. JACKMAN: -- town October 29th.

5 THE COURT: October 28th.

6 MS. JACKMAN: I return on the --

7 (END OF RECORDING - 4:44:00 P.M.)

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C E R T I F I C A T E

I, Stephanie J. Handley, certify that the foregoing transcript of proceedings in the Family Court of the State of New York, County of Westchester, in the Matter of Tara Walsh v. Stephen Russell, Docket Nos. 0-06917-18, 0-06917-18/18A, 0-06917-18/18B, and V-07641-18, was prepared using the required transcription equipment and is a true and accurate record of the proceedings. Due to parties' microphones not working properly, several inaudible segments are contained in the aforementioned transcript and are noted as such.

Signature *Stephanie Handley, CT*

Date: October 3, 2018

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